PEMBERTON ROWE LLP

Solicitors – 5 Whitehall Court, London SW1A 2EL

Whitfield Carter LLP

FAO Sarah Whitfield

Your ref: WC-00188 / SW / TG Our ref: PR/AW/CRYO-014

28 November 2025

Dear Sirs

Hartwell Pharma Limited and Cryovance Cold Chain Limited

We act for Cryovance Cold Chain Limited and reply to your letter before action of 7 November 2025. Liability is not admitted. While our client accepts that two temperature deviations occurred, it does not accept your characterisation of those events, nor that both batches were necessarily total losses, and it puts your client to proof of causation and quantum.

In any event, our client's liability (if any) is governed by clause 11.3 of the Services Agreement, which caps its aggregate liability at the greater of £500,000 or the charges paid in the preceding twelve months. The charges paid in that period were £430,000. Your client agreed to that allocation of risk in a freely negotiated commercial contract between sophisticated parties, and your suggestion that clause 11.3 is unreasonable is misconceived.

Our client is willing to engage in without-prejudice discussions and proposes a meeting. This letter is sent on an open basis.

Yours faithfully

Pemberton Rowe LLP